



adaptive
enterprise ltd.

(Private & Confidential)

Letter of Appointment

5/6 Gaznabi Road, Block B
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Date: May 17th, 2017

Md. Nahidul Islam Siddique

Panchdona High School, Atibazar, Keranigonj, Dhaka-1216.

Sub: Appointment for the position of "Trainee"

Dear Mr. Siddique,

We have the pleasure to inform you that the company has decided to appoint you as **"Trainee"** in our developers' team with effect from **1st June, 2017 (Thursday)**. Details of the terms and conditions of your employment are set out in this letter.

1. Your monthly remuneration will be as follows :

Total Tk. **8,000.00** Consolidated.

In words: (**Taka Eight Thousand**) only.

2. You will remain in a probation period for **4 (~~Three~~ ^{Four}) months** from the date of your joining. Upon completion of this period, your performance will be judged and based on the result you might be offered a permanent position.
3. After completion of your probation period, you will be entitled to Festival Bonus equivalent to half of your gross salary, during each of the two Eids.
4. When applicable, your income tax will be deducted at source by the company at the rate applicable in law.
5. Notwithstanding the terms and condition stated above Adaptive Enterprise Limited retains the right to terminate/release/dismiss or and service of you, with or without requiring to give any reason whatsoever at any time during this period with a notice period of 1 (one) week. Reciprocally you will also have the right to resignation from your post at any time during this period with a notice period of 1 (one) week.
6. After you have been offered a permanent position your next evaluation will be held after 12 months from your last evaluation date.

7. You are expected to follow the following work days/hours: A minimum of 45 hours per week for a 5 days in a week from Monday to Friday from 11:30AM to 9:00PM (30 minutes unpaid lunch). As a salaried employee you may be required to put in additional time to meet schedules and deadlines.
8. You are entitled to 10 days of paid annual leave which accrues at a rate of (1) day per month starting with the third month of service. Example: after 4 complete months of service the employee is entitled to (2) paid days of leave. After 12 months the employee is entitled to (10) days of paid leave. Paid leave cannot be exchanged for additional compensation and no more than (5) accrued days can roll over from one year to the next.
9. You are entitled to 6 days of paid sick leave that accrues at a rate of (0.5) day per month starting with the first month of service. Example: after 4 complete months of service the employee is entitled to (2) paid sick days of leave. Accrued days cannot roll over from one year to the next. Paid leave cannot be exchanged for additional compensation. Paid sick leave days are not vacation days and are to be used only when the employee is unable to work due to medical reasons.
10. You are entitled to 14 paid holidays in accordance with Government/Company regulations. A detailed holiday list will be provided to you every year.
11. You hereby irrevocably and unconditionally promise to abide by the terms and conditions set by the Appointment Letter and to serve Adaptive Enterprise Limited, 5/6 Gaznabi Road, Mohammadpur, Dhaka 1207, for at least 2 (two) years without any interruption starting from your joining date mentioned above if you are provided permanent position.
12. During the period of the said 2 (two) years, you shall not enter into any activities, directly or indirectly, which may cause any detrimental effect on the business of your employer.
13. In the event of any default on your part and/or if you take employment with any other organization, you hereby promise to pay at the rate of your current monthly gross salary for the remaining period of 2 (two) years and Adaptive Enterprise Limited shall be entitled to enforce the lien at any time.
14. You understand and agree, under a mutually agreed reasonable cause, if it is not possible for you to render your service, you shall provide Adaptive Enterprise Limited a written prior notice of 1(one) month to transfer your responsibilities and/or fulfill your obligations. Failure to do so in your part will entitle Adaptive Enterprise Limited to make a claim at the rate of your current monthly gross salary against you for the remaining period of 2 (two) years.

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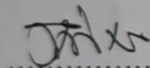
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15. Notwithstanding the terms and condition stated above Adaptive Enterprise Limited retains the right to terminate/release/dismiss or and service of you, with or without requiring to give any reason at any time during these 2(two) year period with a notice period of 1 (one) month.
16. You shall have no right or authority to make any promise, warranty or representation, to enter into any contract or otherwise to assume any obligation or responsibility in the name of or on behalf of Adaptive Enterprise Limited except to the extent specifically authorized in writing by Adaptive Enterprise Limited.
17. You understand and agree that Adaptive Enterprise Limited may send you overseas (USA, India etc.) to undergo highly skilled training programs for human resource development so to equip yourself to provide the required standard of skilled service(s) to the company, and in that case may require you to adhere to additional contract(s) as deemed necessary by the company.
18. Breach of any discipline which hamper company's interest during your employment, you may be terminated at any time with immediate effect.
19. After your appointment you will be required to sign a Non-Disclosure Agreement (NDA) and Non-Compete Agreement.

If you are willing to accept the terms of this offer, please sign and return the duplicate of this letter as a token of your acceptance.

Yours sincerely,



.....
Asif Yusuf
Managing Director
Adaptive Enterprise Ltd.

Acceptance

Signature:

Name:

Date:

Date of Joining:

NON-DISCLOSURE AGREEMENT (NDA): Terms and Conditions

1. This service agreement will be governed by the Service Rules of the company as well as standard service rules applicable and practices in Bangladesh.
2. **All the information of the company will be treated as strictly confidential and you will not disclose any of the information to other employees or outside during and after your service period without prior approval of the management. Adaptive Enterprise Ltd. has right to seek compensation for the damage relating to disclosure of information.**
3. During the termination of the contract the employee will ensure not to disclose the salary offer by the other organization where s/he is joining, to any personnel of the current company.
4. The employee will not be allowed to describe detailed activity information such as policy, client segment, specific client name, project name, and technology or product name at the resume of the personnel in any point of the time in the future. However for describing individual expertise in the resume s/he should take approval of the resume write up from the administration of the company.
5. Employee will have access to highly sensitive proprietary information, so hereby promise that employee will not enter into any agreement or undertake any work for or activity with a third party which would give rise to a conflict of interest between employee and Adaptive Enterprise Limited and/or the partner(s) of Adaptive Enterprise Limited, during the term of this agreement and for a period of 2 (two) years after the termination of this agreement.
6. In no event whatsoever, you shall be deemed to have any right or interest in or to any Proprietary Information of Adaptive Enterprise Limited and/or the partner(s) of Adaptive Enterprise Limited.
7. Employee will have no right to publish, disseminate, copy or disclose to any person any Proprietary Information of Adaptive Enterprise Limited and/or the partner(s) of Adaptive Enterprise Limited, without a written consent, and shall not use such Proprietary Information for any purpose other than the contractual and prospective business arrangements.
8. With the exception of Proprietary Information provided by Adaptive Enterprise Limited to satisfy contractual commitments, you agree, if requested, to return all Proprietary Information belonging to Adaptive Enterprise Limited and/or the partner(s) of Adaptive Enterprise Limited (including all copies thereof).

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9. During the employment with the company, employee will place full capabilities at the service of the company and carry out all duties willingly and obediently according to the directives issued from time to time by the management and the superiors. The employee will be sincere and careful in carrying out duties.

10. Bangladesh Government has passed the Intellectual Property Right IPR act 2000 in the parliament; (Code/Development/Document/Report/Consultancy etc.) of programmer activities assigned by the company is deemed to be the intellectual property of the company and the employee/internee cannot claim its IPR. The company can ask for compensation of any amount of money which will only be decided by company management. Any kind of violation in IPR law of the company will be treated as criminal offense and action will be taken accordingly.

11. Management of the company has the right to change any or all the terms and conditions mentioned above.

Signed this on _____ day of _____ 2017

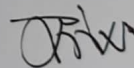
Acknowledged By

Name of Individual: **Md. Nahidul Islam Siddique**

Designation: **Trainee**

Signature

For Adaptive Enterprise Ltd.

~ 

Asif Yusuf

Managing Director

Dated: May 17th, 2017.